

3RD SCH.
—cont.

Provision amended.

Amendment.

Subsection (8) of section one The following words shall be substituted for the words from "store cattle" to the end of the subsection, viz. :—

" 'cattle' has the meaning assigned to it by subsection (1) of section fifty-nine of the principal Act as originally enacted."

Section two - The following words shall be omitted, viz., the word "store," the words from "in the case of" to "therefrom, and if", and the words "other than tuberculosis."

PART II.

MINOR AMENDMENTS OF SUBSECTION (2) OF SECTION 1.

Provision amended.

Amendment.

Paragraph (a) - - The word "indelibly" shall be omitted.

Paragraph (c) - - In sub-paragraph (i) the words "one clear day" shall be substituted for "three clear days", and sub-paragraph (iv) shall be omitted.

CHAPTER 54.

An Act to provide that certain rules shall be complied with in determining the need of applicants for transitional payments under the Unemployment Insurance (National Economy) (No. 2) Order, 1931; and to enable the same rules to be observed in granting outdoor relief under the enactments relating to the poor law.

[17th November 1932.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Determina-
tion of
need.

1.—(1) Notwithstanding anything in paragraph (4) of Article one of the Unemployment Insurance (National

Economy) (No. 2) Order, 1931, in determining any question arising under paragraph (2) of that Article, as to whether the circumstances of an applicant for transitional payments are such that, whilst unemployed, he is in need of assistance by way of such payments, the following rules shall be complied with, that is to say—

- (a) any wounds or disability pension taken into account shall be treated as if it were reduced by one half;
- (b) any weekly payment by way of compensation under the enactments relating to workmen's compensation taken into account shall be treated as if it were reduced by one half;
- (c) all money and investments treated as capital assets and taken into account shall—
 - (i) in so far as the value of all such money and investments considered in the aggregate does not exceed twenty-five pounds, be disregarded; and
 - (ii) in so far as that value exceeds twenty-five pounds but does not exceed three hundred pounds, be treated as equivalent to a weekly income of one shilling for every complete twenty-five pounds;
- (d) in taking into account the value to any person of any interest in the dwelling-house in which he resides, any sum which might be obtained by him by selling, or by borrowing money upon the security of, that interest shall be disregarded.

(2) It shall be lawful, in granting outdoor relief under the enactments relating to the poor law, to observe all or any of the rules required by the last foregoing subsection to be complied with in relation to transitional payments.

(3) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say:—

“Dwelling-house” includes any yard, garden, out-house and appurtenances belonging thereto;

“Enactments relating to workmen's compensation” means the Workmen's Compensation Acts, 1925

to 1931, and the corresponding enactments in force in Northern Ireland;

“Investments” includes interests in land, except that, in relation to any dwelling-house, it does not include any interest which belongs to a person who is residing therein;

“Wounds or disability pension” means any retired pay or pension to which section sixteen of the Finance Act, 1919, applies.

9 & 10
Geo. 5. c. 32.

Short title,
citation,
duration
and extent.

2.—(1) This Act may be cited as the Transitional Payments (Determination of Need) Act, 1932, and shall be included among the Acts which may be cited together as the Unemployment Insurance Acts, 1920 to 1932.

(2) This Act shall not extend to Northern Ireland.

(3) This Act shall continue in force as long as the Unemployment Insurance Act, 1930, remains in force and no longer.

20 & 21
Geo. 5. c. 16.

CHAPTER 55.

An Act to amend the law with respect to appeals from decisions of official referees, to amend in certain particulars the Supreme Court of Judicature (Consolidation) Act, 1925, and section thirty-eight of the Solicitors Act, 1932, and to make provision for the costs of applications under section eighty-four of the Law of Property Act, 1925. [17th November 1932.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Appeals
from
decisions of
official
referees.

1.—(1) As from the date on which this section comes into operation, the following provisions shall have effect with respect to appeals from decisions of official referees in causes, matters, questions and issues which have been ordered under section eighty-nine of the